

Marc Moszkowski

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Maître Emmanuelle REIN

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Châteaudouble, July 28, 2025

Subject: Urgent Request for Submission of Observations

Dear Madam,

After nearly two dozen detailed letters sent over the years without success to various authorities, including the Bar Association, the Draguignan Court, the Prosecutor's Office, the Attorney General of New York, the FBI, the President of the French Republic, the Union of Magistrates, and others, this letter provides me with my first opportunity, since the introduction of the first legal action against me seven years ago before the Draguignan Court, to be heard personally in the context of this ongoing case. I sincerely hope that this will be the moment when my voice will finally be taken into account, after all these years of procedural hurdles and systematic refusals of my objections.

I would like to note that, despite the sacrosanct principle of *res judicata*, which dictates that a final judgment should always remain immutable, history has shown that this principle is not infallible. The example that comes to mind is that of Captain Dreyfus, initially condemned to perpetual deportation in 1894 but who did not die on Devil's Island. There are many other examples in jurisprudence.

In this context, I am writing to request your immediate intervention to submit my

observations regarding the judgments and the sale of my property in the ongoing proceedings. As a court-appointed attorney, I believe it is your responsibility to represent my interests and ensure that my rights are fully protected in this matter.

I will detail below several essential points that need to be addressed before any further action is taken regarding the judicial sale of my property:

I. Failure to Notify the Hearing of February 28, 2019

I must insist on a critical point: I never received any summons to appear or notice for the hearing of February 28, 2019, at the conclusion of which a default judgment was rendered, leading to the current situation.

It is important to emphasize that the summons dated November 29, 2018, did not mention either the date or the time of the hearing, nor how I would be notified. Moreover, it did not include any of the attachments referenced in the document, which is contrary to the usual procedure.

According to the French Civil Procedure Code, an initiating document must inform the defendant of the appearance date. Furthermore, the fundamental principle of a fair trial (as recognized in French law and guaranteed by Article 6 of the European Convention on Human Rights) requires that every party be informed of the proceedings involving them and be given the opportunity to appear at the hearing.

In this case, I was not represented by a lawyer, having been denied legal aid due to the value of my property. Consequently, I had to rely on the formal regularity of the summons to be informed of the hearing. However, having never received any indication of the hearing date, it was materially impossible for me to have been informed and, therefore, to appear.

My attempts to contact the court registry were unsuccessful, as my interlocutor informed me that direct communication was prohibited without legal representation, which I was unable to obtain at that time.

As a result, the claim that the judgment is considered to be contradictory is manifestly unfounded. There can be no contradiction if the hearing date was never brought to the defendant's attention. This omission constitutes a severe violation of my defense rights and calls into question the validity of the default judgment.

Although several acts of service have been carried out in the context of this case, it is clear that no summons to appear meeting the requirements of Article 55 of the Civil Procedure Code was ever served to me regarding the hearing of February 28, 2019. The proper service of the initiating summons is a substantive requirement that cannot be remedied by later actions, as established by consistent case law.

In the absence of this foundational act, which explicitly mentions the hearing date and summons to appear, the procedure is tainted by a procedural defect that undermines its validity. This failure infringes on my defense rights guaranteed by Article 16 of the same Code, as well as the principle of contradiction, the cornerstone of a fair trial under Article 6 of the European Convention on Human Rights.

Therefore, it is important to note that, despite multiple acts of service being performed, none of them included the summons to appear for the relevant hearing. This omission constitutes a significant procedural flaw that made it impossible to effectively exercise my defense rights.

Had I been properly notified of this hearing, I would, of course, have attended to defend my interests. This failure to notify constitutes a violation of fundamental procedural rules, depriving me of my right to be heard and to contest the allegations made against me.

I only became aware of the hearing on May 31, 2019, when I was served with the judgment of April 25. This discovery was profoundly shocking, as I had been awaiting notification of the hearing date up until that point.

This failure was even more prejudicial because, on March 13, 2019, I unexpectedly received a significant sum of money, which allowed me to settle the outstanding fees of the lawyer who had successfully defended me in the summary proceedings seven months earlier and immediately resume the search for a new attorney—without

knowing, unfortunately, that the hearing had already taken place 13 days prior.

II. False Representations and Refuted Allegations Presented as Established Facts by the Judgment

In the judgment and procedural acts related to this case, the plaintiff claims:

"... Mr. David 'Rumsey replies that, during 2013, Mr. Marc Moszkowski repeatedly mentioned his difficulties in settling the inheritance taxes on his family property of several hectares, which he had inherited in Châteaudouble (83); that he accepted the loan contract which was accompanied by a promise of mortgage collateral on the same day; that the funds were transferred at Mr. Moszkowski's request to his son, as evidenced by the bank statement provided, for the faster settlement of the inheritance taxes with the French Treasury, as Arthur Moszkowski resided in France; that thereafter, relations between the parties deteriorated due to Mr. Marc Moszkowski's violation of intellectual property rights held by Deepgulf, which is the subject of a pending case in the United States;..."

My comments are as follows:

1. False Allegation of Communication in 2013:

Mr. Rumsey claims that in 2013, I personally informed him, repeatedly, about difficulties I faced in paying my inheritance taxes. This statement is false, as there was no communication between Mr. Rumsey and me on this matter or any other before the end of 2017. It is crucial to emphasize this false assertion. It should also be noted, to avoid any suggested misunderstanding, that the amount he falsely claims to have transferred to me was less than one-tenth of the inheritance taxes.

2. False Attribution of Fund Payment::

No funds were ever transferred by Mr. Rumsey to either my son, myself, or anyone else. The bank statement he mentions cannot, under any circumstances, prove this alleged transaction; in fact, it proves the contrary without a doubt, but one must examine the statement in detail.

3. Intellectual Property Violation and Relationship Deterioration:

Mr. Rumsey refers to an "intellectual property violation" in the context of a pending case in the United States. This allegation was not only false but had also been refuted at the time by the judgment rendered in the American proceedings. The judgment, which reflects the debates of the Court of Appeal of Aix-en-Provence on October 10, 2022, refers to an American case in which I was cleared by the U.S. Federal Court on January 27, 2020—nearly three years prior. It is unacceptable that foreign allegations were used here to justify such a serious measure. The inclusion of this information aims to harm my reputation and present a fictitious reason for the deterioration of our relationship, implying that personal disputes were the cause of the legal conflict, rather than a professional disagreement based on unfounded claims.

4. Implied Motive and Conditionality Revealing Bad Faith:

The phrasing "*relations... deteriorated, due to...*" strongly suggests that the dispute stems not from any objective harm, but from deteriorated personal relations. In other words, if the relationship had remained amicable, no complaint would have been filed, implying a vengeful reaction, rather than a pursuit of justice, as the motive behind this legal action.

It is significant that Mr. Rumsey never raised any claim for reimbursement for nearly four and a half years after the contested transfer. It was only at the end of 2017, during a major conflict between Mr. Howard and me within DeepGulf, that the first reimbursement demands were made, seemingly at Mr. Howard's instigation.

Even more revealing: all exchanges initiated by Mr. Rumsey during that time always included my employer, Mr. Howard, in the correspondence, which aligns with the previous analysis. Now, if this had truly been a personal loan between Mr. Rumsey and myself, there would have been no legitimate reason for my employer to be included in these exchanges. This practice confirms a coordination between the two men and suggests the instrumental use of legal proceedings for personal retaliation and financial neutralization, perfectly in line with the deterioration of internal relations mentioned earlier.

5. Unfounded Assumption of Insolvency Based on Self-Incriminating

Evidence:

The most perplexing and self-incriminating statement appears in the plaintiff's claim, filed after he lost his summary proceedings:

"Moreover, the situation of MR. MARC MOSZKOWSKI, in apparent conflict with his employer over the payment of his wages, an amount totaling \$750,000 (approximately €659,835), raised serious doubts about his ability to repay the amounts owed under the loan agreement."

It turns out that Mr. Rumsey was, in fact, the fourth major shareholder of my employer, and moreover, the sum in question was not transferred by him but by Rustin Howard, CEO of DeepGulf. This sum represented exactly a salary owed to me, which Mr. Howard was legally obligated to pay and had formally guaranteed to the U.S. government using his own assets. Furthermore, I had transferred to the company significantly higher sums to cover these salaries, which were derived from my consulting fees for a French offshore oil services company.

Mr. Rumsey, closely associated with Mr. Howard and one of the main shareholders of DeepGulf, could not have been unaware of this legal and contractual obligation. It is therefore all the more concerning that he tried to requalify an obligatory salary payment as a fictitious personal loan, without ever proving he was the lender.

Please see attached the complaint filed on March 14, 2023, against David RUMSEY and Rustin HOWARD before the Public Prosecutor, Draguignan District Court.

The judgment refers to several false fundamental statements made by David Rumsey, which I formally contest. These erroneous or deliberately misleading assertions should not be accepted as established facts by the court, as they are easily refutable with the evidence already provided.

III. Underestimation of the Property (Auction Price)

The starting price of €300,000 set by the opposing party for the sale of my property seems manifestly insufficient and does not reflect its true value. The inheritance taxes I fully paid amounted to €576,616, calculated using an annual discount rate of just 2.23%, and based on 55% of the property's total value. Thus, the requested starting price represents barely half of the inheritance tax paid and less than a third of the value on which this tax was calculated. This undervaluation is not only unjustified but also prejudicial to my rights as the property owner.

IV. Request for Immediate Action

Given the gravity of these irregularities and their impact on my property rights, I kindly ask you to promptly submit my observations to the court, including the following requests:

- An investigation into why I was informed of the hearing on February 28, 2019, only on May 31, more than three months later, and over a month after the judgment rendered on April 25, which deprived me of any opportunity to appear or defend myself, despite having prevailed in the same case in summary proceedings seven months earlier.
- A formal objection to the inaccurate or false statements made by Mr. David Rumsey, on which the claim for reimbursement is improperly based.
- A review of the auction price to reflect at least the true tax value of €1,048,393, as determined by the administration itself.
- An immediate suspension of the forced sale, pending this review and a contradictory reexamination.

As noted above, the failure to notify me of the hearing on February 28, 2019, is, in itself, a valid reason for the judgment to be overturned.

I would appreciate it if you could promptly bring this irregularity to the court's attention, as it alone justifies the annulment of the judgment or, at the very least, the suspension of the ongoing enforcement measures.

I also kindly request that you acknowledge receipt of this letter and provide me with an estimated timeline for submitting these observations.

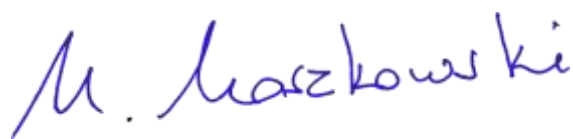
I would like to once again stress a crucial point that undermines the analysis in the judge's order, namely that the judgment rightly admits that a loan must be proven by the transfer of funds. However, in this case, as already stated, the disputed sum was paid to me by my employer in partial settlement of a salary owed, not by Mr. Rumsey. He has never proven he transferred these funds or demonstrated a personal right to reimbursement. His assertion that a loan exists relies on a false presentation of the facts, to which the Court gave credence in the absence of a contradictory hearing.

Finally, I would like to emphasize that I am a highly organized person, particularly in matters of legal affairs. In the United States, where I represent myself, I have personally drafted and organized over 4,000 pages of legal proceedings. I systematically store and organize every document received, in both paper and digital formats. The likelihood that I lost such a crucial official notification, which would have finally given me the opportunity to be heard, delivered by a bailiff, is therefore virtually nonexistent. This further strengthens the credibility of my statement: I was never notified of the hearing on February 28, 2019.

Thank you in advance for your prompt attention to this matter.

Marc Moszkowski

Châteaudouble, July 28, 2025



Enclosure: Complaint filed against David RUMSEY and Rustin HOWARD with the Public Prosecutor, Draguignan, March 14, 2023

Marc Moszkowski
Le Verdos
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83300, Châteaudouble, France
Tél: 04 89 53 23 44
mmm@deepgulf.net

Madame, Monsieur le Procureur de la
République
Tribunal judiciaire de Draguignan
11 Rue Pierre Clément BP 273
83007 DRAGUIGNAN CEDEX
Tél: 0494605700

Châteaudouble, March 15, 2023

SUBJECT: Criminal complaint against David RUMSEY and Rustin HOWARD

Madame, Monsieur le Procureur de la République,

I have the honor to inform you of the following facts regarding the fraudulent deeds perpetrated against me by Messrs. David RUMSEY¹ and Rustin HOWARD², both citizens and residents of the United States of America:

1. In June 2013, my employer, Mr. HOWARD, prepared with his friend and close associate Mr. RUMSEY, who was unknown to me, a loan project in the amount of €38,750 (\$50,000), at the usurious and illegal rate of 17% , which Mr.

¹ **RUMSEY David**, attorney, domiciled at 1080 Pittsford Victor Road, Suite 100, Pittsford, New York 14534

² **HOWARD Rustin**, Chairman of the Board, DeepGulf, Inc., domiciled at 431 East Zaragoza St., Unit B, Pensacola, Florida 32502

HOWARD intended to fraudulently substitute for the salaries that his company owed me irrefutably according to the terms of my employment, of my activities within the company, which generated all of the revenue thereof, of his legal obligations, and of the firm commitment he had made to the U.S. government;

2. The loan project was never signed in writing, did not bear the compulsory handwritten legal notices, and Mr. RUMSEY never paid me any amount of money, neither to me nor to any member of my family, nor ever communicated with me;
3. However, in April 2018 Mr. RUMSEY summoned me in summary proceedings before the court of Draguignan, in France, for the repayment of the amount he claimed to have lent me in June 2013, whereas Mr. RUMSEY had never communicated with me about the establishment of this alleged loan or about any other subject, and never paid any amount to me or to any member of my family. I was represented by a lawyer and **Mr. RUMSEY's complaint was quickly dismissed**;
4. In October 2018, Mr. RUMSEY obtained from the same court a judicial lien on my real estate, arguing falsely that he had paid me this amount of €38,750;
5. In November 2018, Mr. RUMSEY summoned me on the merits before the Draguignan Court. Not having sufficient resources at the time to retain representation, which, according to French Civil Law is compulsory, I was still looking for a lawyer who would agree to suspend his fees when the court ruled in April 2019 in favor of Mr. RUMSEY, in my absence and without having ever informed me of the date of the hearing;
6. In June 2019, having received sufficient funds, I took the case to the Aix-en-Provence Court of Appeal after securing the services of an attorney, also compulsory before that court;

7. In July 2019 I sent to my lawyer new evidence which unambiguously proved the fraud committed by Mr. RUMSEY with the help of his accomplice Mr. HOWARD, who happened to be my employer at the time;
8. In November 2022 the Court of Appeal ruled in favor of Mr. RUMSEY, ignoring the evidence that I had provided, which nevertheless revealed undeniably the fraud of which Mr. RUMSEY had been guilty with the complicity of Mr. HOWARD;
9. The new elements do not seem to have been taken into account by the Court, whose judgment does not mention anywhere that Mr. HOWARD was my employer and as such undoubtedly owed me my wages;
10. The Court of Appeal sentenced me to pay Mr. RUMSEY the amount of €38,250 [sic] together with accrued interest amounting to €72,231.96 and miscellaneous costs bringing the total to €116,963.71, which is equivalent to about \$124,000.00;
11. I then decided to lodge an appeal in cassation but, contrary to his oral commitments and despite my numerous letters (seven in total) and telephone calls (three in total), my attorney neglected to meet the legal deadlines for the appeal, which consequently could not be formed;
12. I then resolved to request a review of the Court of Appeal's decision, but Mr. RUMSEY had my bank accounts seized and left only the non-seizable balance of €598.54, which is not enough to pay for my mere sustenance, let alone have myself represented by the compulsory attorney or even bring proceedings before the State or Federal Courts of the domiciles of Mr. RUMSEY and Mr. HOWARD in the United States.

Consequently, I wish to lodge a criminal complaint against Mr. RUMSEY and Mr. HOWARD for aggravated fraud with the aim of appropriating my property, since Mr. RUMSEY never paid me the amount he claims from me, contrary to his misleading statements, but took advantage of the coincidental payment of an equivalent amount of

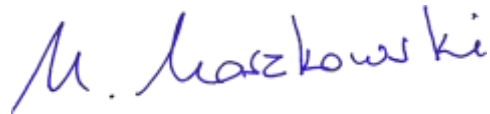
\$50,000 which was made by my employer Mr. HOWARD³ , with respect to the wages he owed me in accordance with American law and the formal commitments he had given the Federal Government.

I declare that I have undeniable proofs to support my statements, whereas Mr. RUMSEY never produced any proof that he had paid me the amount which he claims from me, nor had he ever communicated with me about the establishment of the purported loan, nor about any other matter.

I attached the evidence to this letter.

Respectfully.

Marc Moszkowski



³ The judgment only refers to Mr. HOWARD as to "*another associate*" of Mr. RUMSEY's, whereas Mr. HOWARD was my employer, who as such owed me my wages without any ambiguity whatsoever.

THREE PIECES OF EVIDENCE SHOWING THAT THE LOAN SCHEME NEVER GOT BEYOND THE SCHEME STAGE AND THAT NO PAYMENT WAS EVER MADE BY MR. DAVID RUMSEY:

1. The company's funds were more than sufficient to allow the payment of Marc Moszkowski's salaries after March 2013, the date of the last salary;
2. Mr. Rustin Howard had in any case formally and officially guaranteed the payment of these salaries out of his own funds;
3. Payment of the amount of \$50,000 was made by an officer of Deepgulf, Inc. Mr. Rustin Howard, not by Mr. Rumsey.

TYPE OF DOCUMENT	FILE	REMARKS
1. Summary of payments made to DeepGulf, Inc. by French company GEOCEAN for the personal consultancy activities of Marc Moszkowski, in Singapore, Benin, China, and Malaysia	PAYMENTS FROM GEOCEAN TO DEEPGULF FOR THE ACTIVITIES OF MARC MOSZKOWSKI	\$95,500 was paid to DeepGulf, Inc. on behalf of Marc Moszkowski after DeepGulf, Inc. ceased payment of Marc Moszkowski's salaries
2. Commitment by Mr. Rustin Howard to the US Federal Government to guarantee the salaries of Marc Moszkowski out of its own funds and property:	RUSTIN HOWARD ATTESTATION	This attestation was kept secret from Marc Moszkowski until mid-2018
3. Transfer order dated June 4, 2013, signed by Mr. Rustin Howard, from his investment fund Whitesands , LLC	WHITESANDS BANK TRANSFER	It was Mr. Rustin Howard who made the transfer from his investment fund and who signed it

SEE PIECES OF EVIDENCE BELOW

GEOCEAN PAYMENTS TO DEEPGULF ON BEHALF OF MOSZKOWSKI

Geocean		Grand total:	\$	125,500.00	\$	4,986.20	\$	130,486.20
Payee	Date	Type	Consultancy fees		Expenses		Invoice #	
DeepGulf	8/4/10	Services	\$	26,000.00				1
DeepGulf	8/18/10	Expenses			\$	3,426.00		2
DeepGulf	5/23/12	Services	\$	4,000.00				3
DeepGulf	5/23/12	Expenses			\$	496.73		4
DeepGulf	3/28/13	Services	\$	4,000.00				5
DeepGulf	3/28/13	Expenses			\$	967.47		6
DeepGulf	7/30/13	Services	\$	10,000.00				7
DeepGulf	8/7/13	Services	\$	37,500.00				8
DeepGulf	9/9/13	Services	\$	18,750.00				9
DeepGulf	1/6/14	Services	\$	18,750.00				10
DeepGulf	3/6/14	Services	\$	2,000.00				11
DeepGulf	12/3/14	Services	\$	4,500.00				12
DeepGulf	12/3/14	Expenses			\$	96.00		13
After March 2013			\$	95,500.00				

LAST SALARY PAID TO MARC MOSZKOWSKI: March 2013

Attestation

I, Rus Howard, attest to the following:

1. I am a U.S. Citizen;
2. My company, DeepGulf, Inc., is a startup company with plenty of business to pay the prevailing wage salary of \$120,000 in support of H-1B authorized employment for Mr. Marc Moszkowski;
3. In the event the company does not meet financial expectations, I will use personal assets, including the equity in my home, to guarantee payment of the prevailing wage. Please see the attached personal financial paperwork.

Signature: _____

Date: _____

A customer or team member, with the customer present, completes this form when requesting to send a wire. Outgoing wires can only be sent for Wells Fargo customers. Retain the original copy and provide a copy to the customer ensuring you give the customer the Agreement for Outgoing Wire Transfer Request (page 2 when form is accessed on-line & preprinted on the back of printed forms). Note: Wells Fargo Wire Transfer Services will route wires based on correspondent banking relationships. See back (page 2) for explanations of the Mexican CLABE account, the SWIFT BIC, the International Routing Code (IRC) and the International Bank Account Number (IBAN). ***Required information is noted with an asterisk.**

*Today's Date
06/04/2013

*Send Date (If next day submit wire after 4:30 CT. Store must hold if other than today or next day date)
06/04/2013

1. Originator's Information

*Customer's Name
Whitesands, LLC *Phone Number
(850) 470-9383

*Customer's Physical Address, City, State, Zip Code

17 Palafox St Suite 370 Pensacola, FL 32502

*Transfer from Wells Fargo Account No. (Must be checking, savings, market rate, wholesale checking account or 10-digit command account)

2000035255255

*U.S. Dollar Wire Amount

50000.00

International Wire only: When sending in foreign currency, please ensure the beneficiary's account accepts the designated currency.

Funds to be sent in foreign currency

Foreign Currency Type/Name (SVT/SVP will default to FX unless specified otherwise)

*Currency Code (if known)

*Foreign Currency Amount

☐ Yes ☒ No

2. Beneficiary/Recipient Information (This is the ultimate recipient of the wire transfer funds.)

*Beneficiary/Recipient Name

Arthur Moszkowski

*Beneficiary Account Number, Mexican CLABE # or the International Bank Account Number (IBAN) where applicable:

FR7618106008108096420605022

Beneficiary's Physical Address, City, State, Zip Code (A physical address is required for foreign wires.)

unknown

Information for the Beneficiary (invoice number, purchase order number, etc.)

Beneficiary Phone Number

3. Beneficiary Bank Information (This is the financial institution where the beneficiary maintains their account.)

*Beneficiary Bank RTN or SWIFT Bank Identifier Code (SWIFT BIC)

AGRIFRPP881

*International Routing Code (IRC)

*Beneficiary Bank Name

Caisse Regionale de Credit Agricole des Savoie

Beneficiary Bank Address, City, State, Zip, Country (optional information)

unknown

Information for Beneficiary Bank (wires to Mexican banks require the CLABE account number in the Beneficiary instructions to ensure correct payment.)

4. Intermediary Bank Information (This is a financial institution that the wire must pass through before reaching the final beneficiary bank.) This section is optional and not required for all wires. Please note that routing may be altered depending on Wells Fargo Bank's correspondent relationships.

Optional: *Intermediary Beneficiary Bank RTN or SWIFT BIC

International Routing Code (IRC)

*Intermediary Bank Name

*Intermediary Bank Account No.

Intermediary Bank Address City, State, Zip, Country (optional information)

Information for Intermediary Bank

5. Wire Fee & Customer Signature (Additional fees from intermediary and beneficiary banks may be charged to international transactions - see Fees Section on page 2 of this form.)

Wire Fee Amount (the Transfer From account will be charged the fee.) The region that houses the account being debited determines the fee amount. Use the fee information available through Teamworks and/or Banker's Guide. Do not use SVT/SVP for fee when account is not in your region. Additional fees may apply (see page 2 of this form). Contact WBR Store Support for questions regarding Command Fees.

*AU where the Originator's account is located

66092

*Fee Amount

\$ 45.00

My signature here indicates agreement to all of the information on this Outgoing Wire Transfer Request and to the terms and conditions on the second page of this request. Wells Fargo is authorized to rely on the information on this Request in making the requested funds transfer.

***X**

*Date

06/04/2013

6. Wells Fargo Use Only - Wells Fargo Approval - Following MUST be completed for ALL outgoing wires.

International Wire Foreign Currency Information

Rate

Contract No. (required when \$100,000 or more U.S. \$)

FX Trader Contact

*Wire Transaction/FAS Number

FW-0066092-155-722232

*Name on ID used by customer

Rustin R Howard

Method used to verify business acct. transaction authority

Sig Card

*1st ID type, number, issued by State/Country & Expiration Date

FL DL h630-736-56-378-0 Exp 10/18/2017

*2nd ID type, number, issued by State/Country & Expiration Date

PIN

*Initiated by and AU#

X

*First Approval

X

Second Approval, if applicable

X

7. Wires in Process (WIP)

*When Customer's account is not debited, the WIP Account is funded by

☐ Paid by Check ☐ Paid Cash ☐ Paid through account other than checking, savings, MRA, TRS or Hogan. Reference Acct #:

Tax ID Type - Type & No. are required when customer's account is not debited.

Tax ID No. (if non-citizen provide Alien ID #, Passport # & Country)

☐ Social Security ☐ TIN ☐ Non-U.S. Citizen without TIN ☐ Employer ID